

The U.P. Lokayukta And Up-Lokayuktas Act, 1975

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State of Uttar Pradesh - Act

The U.P. Lokayukta And Up-Lokayuktas Act, 1975

UTTAR PRADESH

India

The U.P. Lokayukta And Up-Lokayuktas Act, 1975

Act 42 of 1975

Published on 8 September 1975

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The U.P. Lokayukta And Up-Lokayuktas Act, 1975

(U.P. Act

No. 42 of 1975

)

Received the assent of the President on 7.9.1975 under Article 201 of the Constitution of India and was published in the U.P. Gazette Extra-ordinary, dated 8.9.1975.

An Act to make provision for the appointment and functions of certain authorities for the investigation of grievances and allegations against Ministers, legislators and other public servants in certain cases and for matters connected therewith.

It is hereby enacted in the Twenty-Sixth Year of the Republic of India as follows :

1.

Short title, extent and commencement. -

(1)

This Act may be called the Uttar Pradesh Lokayukta and Up-Lokayuktas Act, 1975.

(2)

It extends to the whole of the State of Uttar Pradesh and applies also to the public servants posted outside Uttar Pradesh in connection with the affairs of that State.

(3)

[It shall come into force on such date as the State Government may, by notification]

[This Act came into force on 12.7.1977 vide Notification No. 3794/XXXIX-(2) - 39(16)-75, dated 12.7.1977.]
in the Gazette appoint.

2.

Definitions. -

In this Act, unless the context otherwise requires -

(a)

"action" means action taken by way of decision, recommendation or finding or in any other manner, and includes failure to act, and all other expressions connoting action shall be construed accordingly;

(b)

"allegation", in relation to a public servant, means any affirmation that such public servant -

(i)

has abused his position as such to obtain any gain or favour to himself or to any other person or to cause undue harm or hardship to any other person,

(ii)

was actuated in the discharge of his functions as such public servant by personal interest or improper or corrupt motive, or

(iii)

is guilty of corruption, or lack of integrity in his capacity as such public servant;

(c)

"competent authority", in relation to a public servant, means, -

(i)

in the case of a Minister or Secretary or member of the Legislative Assembly or of the Legislative Council - the Chief Minister,

(ii)

in the case of any other public servant - such authority as may be prescribed;

(d)

["grievance" means :-

(i)

a claim by a person that he sustained injustice or undue hardship in consequence of mal-administration, or

(ii)

a complaint to the effect that an authority empowered to make appointments to a public service or post in connection with the affairs of the State of Uttar Pradesh has after the commencement of the Uttar Pradesh Lokayukta and Up-Lokayuktas (Amendment) Act, 1989 made any appointment in breach of the quota of reservation for members of Scheduled Castes or Scheduled Tribes laid down by the State Government.]

(e)

"Lokayukta" means a person appointed as the Lokayukta and "Up-Lokayukta" means a person appointed as an Up-Lokayukta, under Section 3;

(f)

"mal-administration" means action taken or purporting to have been taken in exercise of administrative functions in any case, -

(i)

where such action or the administrative procedure or practice governing such action is unreasonable, unjust, oppressive or improperly discriminatory; or

(ii)

where there has been negligence or undue delay in taking such action, or the administrative procedure or practice governing such action involves undue delay;

(g)

"Minister" means a member (other than the Chief Minister) of the Council of Ministers, by whatever name called, for the State of Uttar Pradesh, that is to say a Minister, Minister of State or Deputy Minister;

(h)

"officer" means a person appointed to a public service or post in connection with the affairs of the State of Uttar Pradesh;

(i)

"prescribed" means prescribed by rules made under this Act;

(j)

"public servant" denotes a person falling under any of the following descriptions, and includes, subject to the provisions of sub-section (4) of Section 8, a person who at any time in the past fell under any of the following descriptions, namely,-

(i)

every Minister referred to in clause (g);

(ii)

every member of the Legislative Assembly or the Legislative Council of the State of Uttar Pradesh not being the Chief Minister or Minister referred to in clause (g);

(iii)

every officer referred to in clause (h);

(iv)

(a)

every Pramukh of a Kshettra Samiti;

(b)

every Adhyaksha of a Zila Parishad;

(c)

every Nagar Pramukh of a Nagar Mahapalika;

(d)

every President of the Municipal Board of a city as defined in clause (4) of Section 2 of the U.P. Municipalities Act, 1916;

(e)

a non-official Chairman including every office bearer of that description by whatever name called, or Managing Director of a district level central society or of an apex society, registered under any law relating to co-operative societies for the time being in force;

Explanation. - In this sub-clause, "central society" means a cooperative society which includes in its membership other co-operative societies, and "apex society" means a State level central society;

(v)

every person in the service or pay of -

(a)

any local authority in the State of Uttar Pradesh which is notified by the State Government in this behalf in the Gazette;

(b)

any corporation not being a local authority established by or under an Uttar Pradesh or Central Act and owned or controlled by the State Government, which is notified by the State Government in this behalf in the Gazette;

(c)

any Government company within the meaning of Section 617 of the Companies Act, 1956 (Act I of 1956), in which not less than fifty-one per cent of the paid-up share capital is held by the State Government or any company which is a subsidiary of a company in which not less than fifty-one per cent of the paid-up share capital is held by the State Government and which is notified by the State Government in this behalf in the Gazette;

(d)

any society registered under the Societies Registration Act, 1860, which is owned or controlled by the State Government and which is notified by the Government in this behalf in the Gazette;

(k)

"Secretary" means a Secretary to the Government of Uttar Pradesh and includes a Special Secretary, an Additional Secretary and a Joint Secretary.

3.

Appointment of Lokayukta and Up-Lokayuktas. -

(1)

For the purpose of conducting investigations in accordance with the provisions of this Act, the Governor shall, by warrant under his hand and seal, appoint a person to be known as the Lokayukta and one or more persons to be known as the Up-Lokayukta or Up-Lokayuktas :

Provided that, -

(a)

the Lokayukta shall be appointed after consultation with the Chief Justice of the High Court of Judicature at Allahabad and the Leader of the Opposition in the Legislative Assembly, and if there be no such leader a person elected in this behalf by the members of the opposition in that House in such manner as the Speaker may direct;

(b)

the Up-Lokayukta or Up-Lokayuktas shall be appointed after consultation with the Lokayukta :

Provided further that where the Speaker of the Legislative Assembly is satisfied that circumstances exist on account of which it is not practicable to consult the Leader of the Opposition in accordance with clause (a) of the preceding proviso, he may intimate the Governor the name of any other member of the Opposition in the Legislative Assembly who may be consulted under that clause instead of Leader of the Opposition.

(2)

Every person appointed as the Lokayukta or an Up-Lokayukta shall before entering upon his office, make and subscribe before the Governor, or some person appointed in that behalf by him, an oath or affirmation in the form set out for the purpose in the First Schedule.

(3)

The Up-Lokayuktas shall be subject to the administrative control of the Lokayukta and, in particular, for the purpose of convenient disposal of investigations under this Act, the Lokayukta may issue such general or special direction as lie may consider necessary to the Up-Lokayukta:

Provided that nothing in this sub-section shall be construed to authorise the Lokayukta to question any finding, conclusion or recommendation of an Up-Lokayukta.

4.

Lokayukta or Up-Lokayukta to hold no other office. -

The Lokayukta shall be a person who is or has been a Judge of the Supreme Court or a High Court and the Lokayukta or an Up-Lokayukta shall be a person who is not and has never been a member of Parliament or a member of the Legislature of any State and shall not hold any office of trust or profit (other than his office as the Lokayukta, or as the case may be, an Up-Lokayukta) or be connected with the political party or carry on any business or practice any profession, and accordingly, before he enters upon his office, a person appointed as the Lokayukta or as the case may be, an Up-Lokayukta, shall -

(a)

if he is a sitting Judge or holds any other office of trust or profit, resign from such office; or

(b)

if he is connected with any political party, sever his connection with it; or

(c)

if he is carrying on any business, sever his connection (short of divesting himself of ownership) with the conduct and management of such business; or

(d)

if he is practising any profession, suspend practice of such profession.

5.

Terms of office and other conditions of service of Lokayukta and Up-Lokayukta. -

(1)

Every person appointed as the Lokayukta or Up-Lokayukta shall hold office for a terms of [six years]

[Substituted for 'five years' by U.P. Act No. 8 of 1988 (w.e.f. 8.1.1988).]

from the date on which he enters upon his office :

Provided that, -

(a)

the Lokayukta or an Up-Lokayukta may, by writing under his hand addressed to the Governor, resign his office;

(b)

the Lokayukta or an Up-Lokayukta may be removed from office in the manner specified in Section 6.

(2)

If the office of the Lokayukta or an Up-Lokayukta becomes vacant, or if the Lokayukta, or an Up-Lokayukta is by reason of absence or for any other reason whatsoever, unable to perform the duties of his office, those duties, shall until some other person appointed under Section 3 enters upon such office or, as the case may be, until the Lokayukta or such Up-Lokayukta resumes his duties, be performed, -

(a)

where the office of the Lokayukta becomes vacant or where he is unable to perform the duties of his office, by the Up-Lokayukta or if there are two or more Up-Lokayuktas by such one of the Up-Lokayuktas as the Governor may by order direct;

(b)

where the office of an Up-Lokayukta becomes vacant or where he is unable to perform the duties of his office, by the Lokayukta himself or if the Lokayukta so directs by the other Up-Lokayukta or, as the case may be, such one of the other Up-Lokayuktas as may be specified in the direction.

(3)

On ceasing to hold office the Lokayukta or an Up-Lokayukta shall be ineligible for further employment (whether as the Lokayukta or an Up-Lokayukta) or in any other capacity under the Government of Uttar Pradesh or for any employment under, or office in any such local authority, corporation, Government company or society as is referred to in [sub-clause (v) of clause (j) of Section 2.]

[Substituted by Section 3 of U.P. Act No. 7 of 1981 and shall be deemed always to have been substituted.]

(4)

There shall be paid to the Lokayukta and the Up-Lokayuktas such salaries as are specified in the Second Schedule.

(5)

The allowances and pension, if any, payable to, and other conditions of service, of the Lokayukta or an Up-Lokayukta shall be such as may be prescribed :

Provided that in prescribing the allowances and pension payable to, and other conditions of service of -

(a)

the Lokayukta, regard shall be had to the allowances and pension payable to and other conditions of service, of the Chief Justice of the High Court;

(b)

the Up-Lokayukta, regard shall be had to the allowances and pension payable to, and other conditions of service of a Judge of a High Court:

Provided further that the allowances and pension, if any, payable to, and other conditions of service of the Lokayukta or an Up-Lokayukta shall not be varied to his disadvantage after his appointment.

6.

Removal of Lokayukta or Up-Lokayukta. -

(1)

Subject to the provisions of Article 311 of the Constitution, the Lokayukta or an Up-Lokayukta may be removed from his office by the Governor on the ground of misbehaviour or incapacity and on no other ground:

Provided that the inquiry required to be held under clause (2) of the said Article before such removal -

(i)

in respect of Lokayukta shall only be held by a person appointed by the Governor being a person who is or has been a Judge of the Supreme Court or a Chief Justice of a High Court; and

(ii)

in respect of an Up-Lokayukta shall be held by a person appointed by the Governor being a person who is or has been a Judge of the Supreme Court or who is or has been a Judge of a High Court.

(2)

The person appointed under the proviso to sub-section (1) shall submit the report of his inquiry to the Governor who shall, as soon as may be, cause it to be laid before the State Legislature.

(3)

Notwithstanding anything contained in sub-section (1), the Governor shall not remove the Lokayukta or an Up-Lokayukta unless an address by each House of the State Legislature supported by a majority of the total membership of that House and a majority of not less than two-thirds of the members of that House present and voting, has been presented to the Governor in the same session for such removal.

7.

Matters which may be investigated by Lokayukta or Up-Lokayukta. -

(1)

Subject to the provisions of this Act and on a complaint involving a grievance or an allegation being made in that behalf, the Lokayukta may investigate any action which is taken by, or with the general or specific approval of, -

(i)

a Minister or a Secretary; and

(ii)

any public servant referred to in sub-clause (ii) or sub-clause (iv) of clause (j) of Section 2; or

(iii)

any other public servant being a public servant of a class or sub-class of public servants notified by the State Government in consultation with the Lokayukta, in this behalf.

(2)

Subject to the provisions of this Act and on a complaint involving a grievance or an allegation being made in that behalf, an Up-Lokayukta may investigate any action which is taken by or with the general or specific approval of any public servant not being a Minister, Secretary or other public servant referred to in sub-section (1).

(3)

Notwithstanding anything contained in sub-section (2), the Lokayukta may, for reasons to be recorded in writing, investigate any action which may be investigated by an Up-Lokayukta under that sub-section.

(4)

Where two or more Up-Lokayuktas are appointed under this Act, the Lokayukta may, by general or special order, assign to each of them matters which may be investigated by them under this Act:

Provided that no investigation made by an Up-Lokayukta under this Act, and no action taken or thing done by him in respect of such investigation shall be open to question on the ground only that such investigation related to a matter which is not assigned to him by such order.

8.

Matters not subject to investigation. -

(1)

Except as hereinafter provided, the Lokayukta or an Up-Lokayukta shall not conduct any investigation under this Act -

(a)

except on a complaint made under and in accordance with Section 9; or

(b)

in the case of a complaint involving a grievance in respect of any action, -

(i)

if such action relates to any matter specified in the Third Schedule; or

(ii)

if the complainant has or had any remedy by way of proceeding before any Tribunal or Court of law :

Provided that nothing in sub-clause (ii) shall prevent the Lokayukta or an Up-Lokayukta from conducting an investigation if he is satisfied that such person could not or cannot, for sufficient cause, have recourse to a remedy referred to in that sub-clause.

(2)

The Lokayukta or an Up-Lokayukta shall not investigate any action, -

(a)

in respect of which a formal and public inquiry has been ordered under the Public Servants (Inquiries) Act, 1850 (Act 37 of 1850), by the Government of India or by the State Government; or

(b)

in respect of a matter which has been referred for inquiry under the Commissions of Inquiry Act, 1952 (Act 60 of 1952), by the Government of India or by the State Government.

(3)

The Lokayukta or an Up-Lokayukta shall not investigate any complaint which is excluded from his jurisdiction by virtue of a notification issued under Section 19.

(4)

The Lokayukta or an Up-Lokayukta shall not investigate, -

(a)

any complaint involving a grievance, if the complaint is made after the expiry of twelve months from the date on which the action complained against becomes known to the complainant;

(b)

any complaint involving an allegation, if the complaint is made after the expiry of five years from the date on which the action complained against is alleged to have taken place :

Provided that the Lokayukta or an Up-Lokayukta may entertain a complaint referred to in clause (a), if the complainant satisfies him that he had sufficient cause for not making the complaint within the period specified in that clause.

(5)

In the case of any complaint involving a grievance, nothing in this Act shall be construed as empowering the Lokayukta or an Up-Lokayukta to question any administrative action involving the exercise of a discretion except where he is satisfied that the elements involved in the exercise of the discretion are absent to such an extent that the discretion cannot be regarded as having been properly exercised.

(6)

The Lokayukta or an Up-Lokayukta shall not investigate any complaint involving a grievance against a public servant referred to in sub-clause (iv) or sub-clause (v) of clause (j) of Section 2.

9.

Provisions relating to complaints. -

(1)

Subject to the provisions of this Act, a complaint may be made under this Act to the Lokayukta or an Up-Lokayukta -

(a)

in the case of a grievance, by the person aggrieved;

(b)

in the case of an allegation, by any person other than a public servant:

Provided that, where the person aggrieved is dead or is for any reason unable to act for himself, the complaint may be made by any person who in law represents his estate or as the case may be, by any person who is authorised by him in this behalf.

[Provided further that in the case of a grievance involving a complaint referred to in sub-clause (ii) of clause (d) of Section 2, the complaint may be made also by an organization recognised in that behalf by the State Government.]

[Inserted by U.P. Act No. 10 of 1989.]

(2)

Every complaint shall be accompanied by the complainant's own affidavit in support thereof and also affidavits of all persons from whom he claims to have received information of facts relating to the accusation, verified before a notary, together with all documents in his possession or power pertaining to the accusation.

(3)

Every complaint and affidavit under this section as well as any schedule or annexure thereto shall be verified in the manner laid down in the Code of Civil Procedure, 1908, for the verification of pleadings and affidavits respectively.

(4)

Not less than three copies of the complaint as well as of each of its annexures shall be submitted by the complainant.

(5)

A complaint which does not comply with any of the foregoing provisions shall not be entertained.

(6)

Notwithstanding anything, contained in sub-section (1) to (5), or in any other enactment, any letter written to the Lokayukta or Up-Lokayukta by a person in police custody, or in a gaol or in any asylum or other place for insane persons, shall be forwarded to the addressee unopened and without delay by the Police Officer or other persons in charge of such gaol, asylum or other place, and the Lokayukta or Up-Lokayukta, as the case may be, may entertain it and treat it as a complaint, but no action in respect of such complaint shall be taken unless it is accompanied or subsequently supported by an affidavit under sub-section (2).

10.

Procedure in respect of investigation. -

(1)

Where the Lokayukta or an Up-Lokayukta proposes (after making such preliminary inquiry, if any, as he deems fit) to conduct any investigation under this Act, he -

(a)

shall forward a copy of the complaint to the public servant concerned and the competent authority concerned;

(b)

shall afford to the public servant concerned an opportunity to offer his comments on such complaint; and

(c)

may make such orders as to the safe custody of documents relevant to the investigation, as he deems fit

(2)

Every such investigation shall be conducted in private, and in particular, the identity of the complainant and of the public servant affected by the investigation shall not be disclosed to the public or the press whether before, during or after the investigation :

Provided that, the Lokayukta or an Up-Lokayukta may conduct any investigation relating to a matter of definite public importance in public, if he, for reasons to be recorded in writing, thinks fit to do so.

(3)

Save as aforesaid, the procedure for conducting any such investigation shall be such as the Lokayukta or, as the case may be, the Up-Lokayukta considers appropriate in the circumstances of the case.

(4)

The Lokayukta or an Up-Lokayukta may, in his discretion, refuse to investigate or cease to investigate any complaint involving a grievance or, an allegation, if in his opinion -

(a)

the complaint is frivolous or vexatious, or is not made in good faith; or

(b)

there are no sufficient grounds for investigating or, as the case may be, for continuing the investigation; or

(c)

other remedies are available to the complainant and in the circumstances of the case it would be more proper for the complainant to avail of such remedies.

(5)

In any case where the Lokayukta or an Up-Lokayukta decides not to entertain a complaint or to discontinue any investigation in respect of a complaint, he shall record his reasons therefor and communicate the same to the complainant and the public servant concerned.

(6)

The conduct of an investigation under this Act in respect of any action shall not affect such action, or any power or duty of any public servant to take further action with respect to any matter subject to the investigation.

11.

(1)

Subject to the provisions of this section, for the purpose of any investigation (including the preliminary inquiry, if any before such investigation) under this Act, the Lokayukta or an Up-Lokayukta may require any public servant or any other person who in his opinion is able to furnish information or produce documents relevant to the investigation to furnish any such information or produce any such documents.

(2)

For the purpose of any such investigation (including the preliminary enquiry) the Lokayukta or an Up-Lokayukta shall have all the powers of a Civil Court while trying a suit under the Code of Civil Procedure, 1908 (Act 5 of 1908), in respect of the following matters, namely -

- (a) summoning and enforcing the attendance of any person and examining him on oath;
- (b) requiring the discovery and production of any document;
- (c) receiving evidence on affidavits;
- (d) requisitioning any public record or copy thereof from any Court or office;
- (e) issuing commissions for the examination of witnesses or documents;
- (f) such other matters as may be prescribed.

(3) Any proceeding before the Lokayukta or an Up-Lokayukta shall be deemed to be a judicial proceeding within the meaning of Section 193 of the Indian Penal Code (Act 45 of 1860).

(4) Subject of the provisions of sub-section (5), no obligation to maintain secrecy or other restriction upon the disclosure of information obtained by or furnished to the State Government or any public servant, whether imposed by any enactment or by any rule of law, shall apply to the disclosure of information for the purpose of any investigation under this Act and the State Government or any public servant shall not be entitled in relation to any such investigation to any such privilege in respect of the production of documents or the giving of evidence as is allowed by any enactment or by any rule of law in legal proceedings.

(5) No person shall be required or authorised by virtue of this Act to furnish any such information or answer any such question or produce so much of any document -

- (a) as might prejudice the security of the State or the defence or international relations of India (including India's relations with the Government of any other country or with any international organization), or the investigation or detection of crime; or
- (b) as might involve the disclosure of proceedings of the Cabinet of the State Government or any Committee of that Cabinet and for the purpose of this sub-section a certificate issued by the Chief Secretary certifying that any information, answer or portion of a document is of the nature specified in clause (a) or clause (b), shall be binding and conclusive.

(6) Subject to the provisions of sub-section (4), no person shall be compelled for the purposes of investigation under this Act to give any evidence or produce any document which he could not be compelled to give or produce in proceedings before a Court.

12.

Reports of Lokayukta and Up-Lokayuktas. -

(1) If, after investigation of any action in respect of which a complaint involving a grievance has been made, the Lokayukta or an Up-Lokayukta is satisfied that such action has resulted in injustice or undue hardship to the complainant or any other person, the Lokayukta or Up-Lokayukta shall by a report in writing recommend to the public servant and the competent authority concerned that such injustice or undue hardship shall be remedied or redressed in such manner and within such time as may be specified in the report.

(2) The competent authority to whom a report is sent under sub-section (1), shall within one month of the expiry of the term specified in the report, intimate or cause to be intimated to the Lokayukta, or as the case may be, the Up-Lokayukta, the

action taken for compliance with the report.

(3)

If, after investigation of any action in respect of which a complaint involving an allegation has been made, the Lokayukta or an Up-Lokayukta is satisfied that such allegation can be substantiated either wholly or partly, he shall by report in writing communicate his findings and recommendation alongwith the relevant documents, materials and other evidence to the competent authority.

(4)

The competent authority shall examine the report forwarded to it under sub-section (3) and intimate within three months of the date of receipt of the report, the Lokayukta or, as the case may be, the Up-Lokayukta, the action taken or proposed to be taken on the basis of the report.

(5)

If the Lokayukta or the Up-Lokayukta is satisfied with the action taken or proposed to be taken on his recommendations or findings referred to in sub-sections (1) and (3), he shall close the case under information to the complainant, the public servant and the competent authority concerned, but where he is not so satisfied and if he considers that the case so deserves, he may make a special report upon the case to the Governor and also inform the complainant concerned.

(6)

The Lokayukta and the Up-Lokayuktas shall present annually a consolidated report on the performance of their functions under this Act to the Governor.

(7)

On receipt of a special report under sub-section (5) or the annual report under sub-section (6), the Governor shall cause a copy thereof together with an explanatory memorandum to be laid before each House of the State Legislature.

(8)

Subject to the provisions of sub-section (2) of Section 10, the Lokayukta may at his discretion make available, from time to time, the substance of cases closed or otherwise disposed of by him or by an Up-Lokayukta, which may appear to him to be of general, public, academic or professional interest, in such maimer and to such persons as he may deem appropriate.

13.

Action in case of false complaint. -

(1)

Notwithstanding anything contained in any other provision of this Act every person who wilfully or maliciously makes any false complaint under this Act shall, on conviction, be punished with imprisonment for a term which may extend to three years and shall also be liable to fine.

(2)

No Court, except a Court of session, in the case of a complaint investigated by the Lokayukta or a Court of Magistrate, First Class in the case of complaint investigated by an Up-Lokayukta shall take cognizance of the offence under sub-section (1).

(3)

No such Court shall take cognizance of such offence as aforesaid except on a complaint in writing made by the Public Prosecutor at the direction of the Lokayukta or Up-Lokayukta, as the case may be, and the Court of Session may take cognizance of the offence on such complaint without the case being committed to it, anything contained in the Code of Criminal Procedure, 1973, notwithstanding.

(4)

Such Court on conviction of the person making false complaint, may award, of the amount of fine, to the complainant such amount of compensation as it thinks fit.

(5)

If at any stage of a proceeding under this Act before the Lokayukta or an Up-Lokayukta it appears to him that any person appearing in such proceedings or any person who filed an affidavit in support of a complaint made under this Act had knowingly or wilfully given false evidence or had fabricated false evidence with the invention that such evidence should be used in such proceeding the Lokayukta or Up-Lokayukta, as the case may be, may, if satisfied that it is necessary and expedient in the interest of justice that the person should be tried summarily for giving or fabricating, as the case may be, false evidence, take cognizance of the offence and may, after giving the offender a reasonable

opportunity of showing cause why he should not be punished for such offence, try such offender summarily, so far as may be, in accordance with the procedure prescribed for summary trials under the Code of Criminal Procedure, 1973 and sentence him to imprisonment for a term which may extend to six months or to fine which may extend to five thousand rupees or to both.

(6)

When any such offence as is described in Section 175, Section 178, Section 179 or Section 180 of the Indian Penal Code is committed in the view or presence of the Lokayukta or Up-Lokayukta, he may cause the offender to be detained in custody and may, at any time on the same day, take cognizance of the offence and, after giving the offender a reasonable opportunity of showing cause why he should not be punished under this section, sentence the offender to simple imprisonment for a term which may extend to one month, or to fine which may extend to five hundred rupees, or to both.

(7)

In every case tried under sub-section (6), the Lokayukta or Up-Lokayukta, as the case may be, shall record the facts constituting the offence with the statement (if any) made by the offender as well as the finding and the sentence.

(8)

Any person convicted on a trial held under sub-section (5) or subsection (6) may appeal to the High Court, and the provisions of Chapter XXIX of the Code of Criminal Procedure, 1973, shall, so far as they are applicable, apply to appeals under this sub-section, and the Appellate Court may alter or reverse the finding, or reduce or reverse the sentence appealed against.

(9)

The provisions of sub-sections (5), (6), (7) and (8) shall have effect notwithstanding anything contained in the Code of Criminal Procedure, 1973, but nothing in these sub-sections shall affect the power of the Lokayukta or Up-Lokayukta as the case may be, to proceed under sub-section (3) in respect of any offence, where it does not choose to proceed under sub-sections (5), (6) and (7).

(10)

Words and expressions used in sub-sections (5) to (9) and not defined in this Act shall have the same meanings as in the Code of Criminal Procedure, 1973.

14.

Staff of Lokayukta and Up-Lokayukta. -

(1)

The Lokayukta may appoint, or authorise an Up-Lokayukta or any officer subordinate to the Lokayukta or an Up-Lokayukta to appoint, officers and other employees to assist the Lokayukta and the Up-Lokayuktas in the discharge of their functions under this Act:

Provided that nothing in this sub-section shall be construed to prevent any person who holds a post under the Central or the State Government from being appointed on deputation with the consent of that Government.

(2)

The number and categories of officers and employees who may be appointed under sub-section (1), their salaries, allowances and other conditions of service and the administrative powers of the Lokayukta and Up-Lokayuktas shall be such as may be determined by general or special order of the State Government made after consultation with the Lokayukta.

(3)

Without prejudice to the provisions of sub-section (1), the Lokayukta or an Up-Lokayukta may for the purpose of conducting investigation under this Act utilise the services of -

(i)

any officer or investigation agency of the State or Central Government with the concurrence of that Government,

(ii)

any other person or agency.

15.

Secrecy of information. -

(1)

Any information obtained by the Lokayukta or the Up-Lokayukta or members of their staff in the course of or for the

purposes of any investigation under this Act and any evidence recorded or collected in connection with such information, shall, subject to the provisions of the proviso to sub-section (2) of Section 10, be treated as confidential and notwithstanding anything contained in the Indian Evidence Act, 1872 (Act 1 of 1872), no Court shall be entitled to compel the Lokayukta or an Up-Lokayukta or any public servant to give evidence relating to such information or produce the evidence so recorded or collected.

(2)

Nothing in sub-section (1) shall apply to the disclosure of any information or particulars, -

(a)

for purposes of the investigation or in any report to be made thereon or for any action or proceedings to be taken on such report; or

(b)

for purposes of any proceedings for an offence under the Official Secrets Act, 1923 (Act 19 of 1923), or an offence of giving or fabricating false evidence under the India Penal Code, 1860 (45 of 1860) or for purposes of any trial of an offence under Section 13 or any proceedings under Section 16; or

(c)

for such other purposes as may be prescribed.

(3)

An officer or other authority prescribed in this behalf may give notice in writing to the Lokayukta or an Up-Lokayukta, as the case may be, with respect to any document or information specified in the notice or any class of documents or information so specified that in the opinion of the State Government the disclosure of the documents or information or of documents or information of that class would be contrary to public interest, and where such a notice is given, nothing in this Act, shall be construed as authorising or requiring the Lokayukta, the Up-Lokayukta or any member of their staff, unless the Lokayukta or the Up-Lokayukta, for reasons to be recorded, is of the opinion that disclosure of such document or information involves no public interest to communicate to any person any document or information specified in the notice or any document or information of a class so specified.

16.

Intentional insult or interruption to, or bringing into disrepute, Lokayukta or Up-Lokayukta. -

(1)

Whoever intentionally offers any insult, or causes any interruption to the Lokayukta or an Up-Lokayukta while the Lokayukta or the Up-Lokayukta is conducting any investigation under this Act, shall, on conviction, be punished with simple imprisonment for a term which may extend to six months, or with fine, or with both.

(2)

Whoever, by words spoken or intended to be read, makes or publishes any statement or does any other act which is calculated to bring the Lokayukta or an Up-Lokayukta into disrepute, shall, on conviction, be punished with simple imprisonment for a term which may extend to six months, or with fine or with both.

(3)

The provisions of sub-section (2) to (6) of Section 199 of the Code of Criminal Procedure, 1973 (Act 2 of 1974), shall apply in relation to an offence under sub-section (1) or sub-section (2) as they apply in relation to an offence referred to in sub-section (2) of the said Section 199 subject to the modification that no complaint in respect of such offence shall be made by the public prosecutor except with the previous sanction,-

(a)

in the case of an offence against the Lokayukta, of the Lokayukta;

(b)

in the case of an offence against an Up-Lokayukta, of the Up-Lokayukta; concerned.

17.

Protection. -

(1)

No suit, prosecution or other legal proceeding shall lie against the Lokayukta or the Up-Lokayukta or against any officer, employee, agency or person referred to in Section 14 in respect of anything which is in good faith done or intended to be done under this Act.

(2)

No proceedings of the Lokayukta or the Up-Lokayukta shall be held bad for want of form and except on the ground of jurisdiction, no proceedings or decision of the Lokayukta or the Up-Lokayukta shall be liable to be challenged, reviewed, quashed or called in question in any Court.

18.

Conferment of additional functions on Lokayukta and Up-Lokayuktas etc. -

(1)

The State Government may, by notification published in the Gazette and after consultation with the Lokayukta, confer on the Lokayukta or an Up-Lokayukta, as the case may be, such additional functions in relation to the eradication of corruption as may be specified in the notification.

(2)

The State Government may, by order in writing and after consultation with the Lokayukta, confer on the Lokayukta or an Up-Lokayukta such powers of supervisory nature over agencies, authorities or officers set-up, constituted or appointed by the State Government for the eradication of corruption.

(3)

The State Government may, by order in writing and subject to such conditions and limitations as may be specified in the order, require the Lokayukta to investigate any action (being an action in respect of which a complaint may be made under this Act, to the Lokayukta or an Up-Lokayukta) and notwithstanding anything contained in this Act, the Lokayukta shall comply with such order :

Provided that the Lokayukta may entrust investigation of any such action (being action in respect of which a complaint may be made under this Act to an Up-Lokayukta) to an Up-Lokayukta.

(4)

When any additional functions are conferred on the Lokayukta or an Up-Lokayukta under sub-section (1) or when the Lokayukta or an Up-Lokayukta is to investigate any action under sub-section (3), the Lokayukta or Up-Lokayukta shall exercise the same powers and discharge the same functions as he would in the case of any investigation made on a complaint involving an allegation and the provisions of this Act shall apply accordingly.

19.

Power to exclude complaints against certain classes of public servants. -

(1)

The State Government may in consultation with the Lokayukta and on being satisfied that it is necessary or expedient in the public interest so to do, exclude, by notification in the Gazette, complaints involving a grievance or an allegation against persons belonging to any class of public servants specified in the notification, from the jurisdiction of the Lokayukta or, as the case may be Up-Lokayukta:

Provided that no such notification shall be issued in respect of public servants holding posts carrying a minimum monthly salary (excluding allowances) of one thousand rupees or more.

(2)

Every notification issued under sub-section (1) shall be laid, as soon as may be, after it is issued, before each House of the State Legislature while it is in session for a total period of thirty days which may be comprised in one session or in more than one successive sessions and if, before the expiry of the said period, the House agrees in making any modification in the notification or the House agrees that the notification should be annulled and notifies such decision in the Gazette, the notification shall from the date of publication of such decision have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done by virtue of that notification.

20.

Powers to delegate. -

The Lokayukta or an Up-Lokayukta may, by a general or special order in writing direct that any powers conferred or duties imposed on him by or under this Act (except the powers to make reports to the Governor under Section 12) may also be exercised or discharged by such of the officers, employees or agencies referred to in Section 14, as may be specified in the order.

[20A. Expenditure to be charged on Consolidated Fund. - It is hereby declared that the salary, allowances and pension payable to or in respect of the Lokayukta or the Up-Lokayuktas, the expenditure relating to their staff and office and other expenditure in respect of the implementation of this Act shall be expenditure charged on the Consolidated Fund of

the State of Uttar Pradesh.]

[Inserted by Section 6 of U.P. Act No. 7 of 1981.]

21.

Powers to make rules. -

(1)

The State Government may, by notification in the Gazette, make rules for the purpose of carrying into effect the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing provisions, such rules may provide for -

(a)

the authorities for the purpose required to be prescribed under sub-clause (ii) of clause (c) of Section 2;

(b)

the allowances and pension, if any, payable to and other conditions of service of, the Lokayukta and Up-Lokayuktas;

(c)

the form, if any, in which, complaints may be made and the fees, if any, which may be charged and the security, if any, for costs of person against whom an allegation is made which may be required to be furnished in respect thereof;

(d)

the powers of a Civil Court which may be exercised by the Lokayukta or an Up-Lokayukta;

(e)

any other matter which is to be or may be prescribed or in respect of which this Act makes no provision or makes insufficient provision and provision is in the opinion of the State Government necessary for the proper implementation of this Act.

(3)

Every rule made under this Act shall be laid, as soon as may be after it is made, before each House of the State Legislature while it is in session for a total period of thirty days which may be comprised in one session or in two successive sessions, and if during the said period, the House agrees in making any modification in the rule or the House agrees that the rule should be annulled and notifies such decision in the official Gazette the rule shall from the date of publication of such notification have effect only in such modified form or be of no effect, as the case may be, so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

22.

Removal of doubts. -

For the removal of doubts it is hereby declared that nothing in this Act shall be construed to authorise the Lokayukta or an Up-Lokayukta to investigate an allegation [or grievance]

[Added by U.P. Act No. 10 of 1989.]

against -

(a)

the Chief Justice or any Judge of the High Court or a member of a judicial service as defined in clause (b) of Article 236 of the Constitution;

(b)

any officer or servant of any Court;

(c)

the Accountant General, Uttar Pradesh;

(d)

the Chairman or a member of the Uttar Pradesh Public Service Commission or any member of its staff;

(e)

The Chief Election Commissioner, the Election Commissioners and the Regional Commissioners referred to in Article 324 of the Constitution and the Chief Electoral Officer, Uttar Pradesh;

(f)

any member of the Secretariat staff of either House of the State Legislature.

(g)

[any member of the staff of Governor's Secretariat.]

[Inserted by U.P. Act No. 10 of 1989.]

23.

Savings. -

The provisions of this Act shall be in addition to the provisions of any other enactment or any rule of law under which remedy in any other manner is available to a person making a complaint under this Act, and nothing in this Act shall limit or affect the right of such person to avail of such remedy.

24.

Repeal. U.P. Ordinance No. 13 of 1975. -

The Uttar Pradesh Lokayukta and Up-Lokayuktas Ordinance, 1975 is hereby repealed.

The First Schedule

[See Section 3(2)]

I,.....having been appointed Lokayukta/Up-Lokayukta do swear in the name of God/solemnly affirm that I will bear faith and allegiance to the Constitution of India, as by law established, and I will duly and faithfully and to the best of my ability, knowledge and judgment perform the duties of my office without fear or favour, affection or ill-will.

[The Second Schedule]

[Substituted by U.P. Act No. 8 of 1988 (w.e.f. 1.4.1986).]

[See Section 5(4)]

There shall be paid to the Lokayukta and the Up-Lokayukta in respect of time spent on actual service, salary at the following rates per mensem, that is to say :

Lokayukta. - In case he has been a Judge of the Supreme Court or [Chief Justice of a High Court]

[The words 'or a Judge of High Court' omitted by U.P. Act No. 29 of 2006.]

the salary respectively admissible from time to time to a Judge of the Supreme Court or Chief Justice of a High Court or Judge of a High Court.

Up-Lokayukta. - In case he has been a Judge of High Court, the salary admissible from time to time to a Judge of a High Court and in any other case, the salary admissible from time to time to an Additional Secretary of the Government of India :

Provided that if the Lokayukta or an Up-Lokayukta at the time of his appointment is in receipt of a pension (other than a disability or wound pension) in respect of any previous service under the Government of India or any of its predecessor Governments or under the Government of a State or any of its predecessor Government, his salary in respect of service as the Lokayukta or, as the case may be Up-Lokayukta shall be reduced -

(a)

by the amount of that pension, and

(b)

if he has, before such appointment, received in lieu of a portion of the pension due to him in respect of such previous service the commuted value thereof, by the amount of that portion of the pension, [* * *]

[The word 'and' deleted by U.P. Act No. 10 of 1989.]

(c)

[* * *]

[Clause 'C' omitted by U.P. Act No. 10 of 1989. Prior to omission, it stood as under : (c) if he has before such appointment, received a retirement gratuity in respect of such previous service by the pension equivalent of that gratuity.]

The Third Schedule

[See Section 8(1)(b)(i)]

(a)

Action taken for the purpose of investigating crime or protecting the security of the State.

(b)

Action taken in the exercise of powers in relation to determining whether a matter shall go to, or shall continue to be prosecuted in a Court or not.

(c)

Action taken in matters which arise out of the terms of a contract governing purely commercial relations of the

administration of the Government or of the local authority or other corporation, company or society, as the case may be, with customers or suppliers except where the complainant alleges harassment or gross delay in meeting contractual obligations.

(d)

Action taken in respect of appointments [other than an appointment referred to in clause (ii) of clause (d) of Section 2]
[Added by U.P. Act No. 10 of 1989.]

removals, pay, discipline, superannuation or other matters relating to conditions of service of public servants but not including action relating to claims, for pension, gratuity, provident fund or to any claims which arise on retirement, removal or termination of service.

(e)

Grant of honours and awards.

Notifications

Notification No. 1020/XXXIX(4) - 39(13-4)-78, dated March 3, 1978, published in the U.P. Gazette, Extra., dated 3rd March, 1978. - In exercise of the powers under clause (3) of sub-section (1) of Section 7 of the Uttar Pradesh Lok Ayukta and Up-Lokayuktas Act, 1975, the Governor is pleased, in consultation with Lokayukta, U.P., to notify the following classes of public servants for the purpose of said clause (3) :

(1)

Chairman and other members of the Board of Revenue,

(2)

Commissioners of Divisions,

(3)

District Magistrates,

(4)

State-level Heads of Department and Additional Heads of Department, who are not covered by items (1) to (3),

(5)

Chairman (including every office-bearer of that description by whatever name called) and Managing Directors of all such Corporations, Government Companies, and Societies as may be notified by the State Government from time to time under items (b), (c) and (d) of sub-clause (j) of Section 2 of the Act.

(6)

Administrators of Nagar Mahapalikas, Municipal Boards and Zila Parishads.

Notification No. 1495/XXXIX(4) - 39(13)-77, dated March 9, 1978, published in the U.P. Gazette, Extra., dated 9th March, 1978. - In exercise of the powers under item (a) of sub-clause (v) of clause (j) Section 2 of the Uttar Pradesh Lok Ayukta and Up-Lokayuktas Act, 1975, the Governor is pleased to notify all -

(1)

Nagar Mahapalikas, (2) Nagarpalikas, (3) Zila Parishads, (4) Kshettra Samitis, (5) Town Area Committees, (6) Notified Area Committees, (7) Development Authorities, and (8) Industrial Development Authorities in Uttar Pradesh, for the purposes of the said item (a).

Notification No. 158/XXXIX(4)/81 - 12(2)-78, dated March 22, 1981, published in the U.P. Gazette, Extra., dated 22nd May, 1981. - In exercise of the powers under paragraph (c) of sub-clause (v) of clause (j) Section 2 of the Uttar Pradesh Lok Ayukta and Up-Lokayuktas Act, 1975, the Governor is pleased to notify the following Government Companies and their Subsidiary Companies for the purposes of the said provision -

Government Companies :

1. Uttar Pradesh State Cement Corporation Ltd.
2. Uttar Pradesh State Textile Corporation Ltd.
3. The Indian Turpentine & Rosin Corporation Ltd.
4. Uttar Pradesh Export Corporation Ltd.
5. U.P. State Industrial Development Corporation Ltd.
6. The Pradeshiya Industrial and Investment Corporation of U.P. Ltd.
7. U.P. Small Industries Corporation Ltd.
8. U.P. State Brassware Corporation Ltd.
9. U.P. State Handloom Corporation Ltd.

10. U.P. State Leather Development and Marketing Corporation Ltd.
11. U.P. State Mineral Development Corporation Ltd.
12. U.P. Electronics Corporation Ltd.
13. Auto Tractors Ltd.
14. U.P. Bundelkhand Vikas Nigam Ltd.
15. U.P. Poorvanchal Vikas Nigam Ltd.
16. U.P. Panchayati Raj Vitta Nigam Ltd.
17. Prayag Chitrakut Krishi Evam Godhan Vikas Nigam Ltd.
18. U.P. Pashudhan Udyog Nigam Ltd.
19. U.P. Paschimi Kshetriya Vikas Nigam Ltd.
20. Lucknow Mandaliya Vikas Nigam Ltd.
21. Agra Mandal Vikas Nigam Ltd.
22. Allahabad Mandal Vikas Nigam Ltd.
23. Meerut Mandal Vikas Nigam Ltd.
24. Gorakhpur Mandal Vikas Nigam Ltd.
25. Varanasi Mandal Vikas Nigam Ltd.
26. U.P. Bhumi Sudhar Nigam Ltd.
27. Kumaon Mandal Vikas Nigam Ltd.
28. Garhwal Mandal Vikas Nigam Ltd.
29. U.P.A.I. Ltd.
30. U.P. State Sugar Corporation Ltd.
31. U.P. (Poorva) Ganna Beej Evam Vikas Nigam Ltd.
32. U.P. (Madhya) Ganna Beej Evam Vikas Nigam Ltd.
33. U.P. (Paschim) Ganna Beej Evam Vikas Nigam Ltd.
34. U.P. (Rohelkhand-Tarai) Ganna Beej Evam Vikas Nigam Ltd.
35. U.P. State Tourism Development Corporation Ltd.
36. U.P. State Bridge Corporation Ltd.
37. U.P. Rajkiya Nirman Nigam Ltd.
38. U.P. State Food and Essential Commodities Corporation Ltd.
39. U.P. Anusuchit Jati Vitta Evam Vikas Nigam Ltd.
40. Tarai Anusuchit Tati Vitta Evam Vikas Nigam Ltd.
41. U.P. Harijan Evam Nirbal Varg Avas Nigam Ltd.
42. U.P. Nalkoop Nigam Ltd.

43.

U.P. Chalchitra Nigam Ltd.

44.

U.P. Development Systems Corporation Ltd.

Subsidiary Companies :

1. U.P. State Spinning Mills Co. (No. 1) Ltd.

2. U.P. State Spinning Mills Co. (No. 2) Ltd.

3. U.P. Digitals Ltd.

4. U.P. Instruments Ltd.

5. U.P. Textile Printing Corporation Ltd.

6. Handloom Intensive Development (Project (Bijnor) Ltd.

7. Handloom Intensive Development Project (Gorakhpur Basti) Ltd.

8. U.P. Carbide and Chemicals Ltd.

9. Kumaon Anusuchit Janjanti Vikas Nigam Ltd.

10. Teletronics Ltd.

11. Transcables Ltd.

12. Northern Electrical Equipment Industries Ltd.

13. Garhwal Anusuchit Janjanti Vikas Nigam Ltd.

14. Kichha Sugar Co. Ltd.

15. Chhata Sugar Co. Ltd.

16. Chandpur Sugar Co. Ltd.

17. Nandganj Sihori Sugar Co. Ltd.

18. Uptron Sempack Ltd.

19. Uptron Capacitors Ltd.

20. Bundelkhand Concretes Structural Ltd.

21. U.P. Plant Protection and Appliances Ltd.

22. U.P. Potteries (P) Ltd.

23. U.P. Buildware (P) Ltd.

24. Krishna Fasteners Ltd.

25. U.P. Roofings Ltd.

26. Faizabad Roofing Ltd.

27. U.P. Prestressed Products Ltd.

28. U.P. Abscot (P) Ltd.

29. U.P.S.I.C. Potteries.

Notification No. 1505/XXXIX-4-91-42(408)-88 T.C., dated May 29, 1991, published in the U.P. Gazette, Extraordinary, Part 4, Section (kha), dated 29th May, 1991. - In exercise of the powers under the second proviso to sub-section (1) of Section 9 of the Uttar Pradesh Lokayukta and Up-Lokayuktas Act, 1975 (U.P. Act

No. 42 of 1975

), the Governor is pleased to recognize all the Service Associations recognized by the State Government to make complaint involving grievances referred to in sub-clause (ii) of clause (d) of Section 2 of the aforesaid Act to the Lokayukta or an Up-Lokayukta.

Notification No. 835/XXXIX-4-92-12(3)-78, dated April 22, 1992, published in the U.P. Gazette, Extraordinary, Part 4, Section (kha), dated 22nd April, 1992. - In exercise of the powers under sub-clause (v) of clause (j) of Section 2 of the Uttar Pradesh Lokayukta and Up-Lokayuktas Act, 1975 (U.P. Act

No. 42 of 1975

), the Governor is pleased to notify that every person in the service or pay of any of the following Local Authority, Corporation, Government Company or Society, as the case may be, shall be a public servant within the meaning of the said clause (j).

1. Jal Sansthan

2. U.P. Board of Basic Education

3. Zila Basic Shiksha Samiti

4. U.P. Krishi Utpadan Mandi Parishad
5. Krishi Utpadan Mandi Samiti
6. U.P. Board of Indian Medicines
7. U.P. Central Board of Sunni Waqf
8. U.P. Central Board of Shia Waqf
9. Shri Badrinath and Shri Kedarnath Temple Committee
10. Shri Kashi Vishwanath Temple Committee
11. U.P. Khadi and Gramodyog Board
12. Sanjay Gandhi Post Graduate Institute of Medical Sciences
13. U.P. Rajya Dugdha Parishad
14. U.P. Gramin Awas Parishad
15. U.P. State Agro Industrial Corporation
16. Morabad Mandal Vikas Nigam
17. U.P. Rajya Karmchari Kalyan Nigam
18. U.P. Beej Evam Tarai Vikas Nigam
19. U.P. Kaman Area Polutry Development Corporation
20. U.P. Police Awas Nigam
21. U.P. Alpa Sankhyak Vitta Evam Vikas Nigam
22. U.P. Waqf Vikas Nigam
23. U.P. Alparthak Laghu Jal Vidut Nigam
24. U.P. Matsya Vikas Nigam
25. U.P. State Handloom Corporation
26. U.P. Hindi Sansthan
27. Uttar Pradesh Lalit Kala Academy
28. Uttar Pradesh Sangeet Natak Academy
29. Uttar Pradesh Urdu Academy
30. Uttar Pradesh Sanskrit Academy
31. U.P. Sainik School Society
32. Hercourt Butler Technological Institute
33. Institute of Engineering and Technology
34. U.P. Swatantrata Sanani Kalyan Sansthan
35. U.P. Remote Sensing Application Centre
36. U.P. Ganna Vikas Sansthan
37. U.P. Non-conventional Energy Development Authority
38. U.P. Rajya Sainik Kalyan Parishad
39. U.P. Rajya Vidut Utpadan Nigam.

[Substituted by U.P. Act No. 10 of 1989, Prior to substitution, it stood as under : (d) 'grievance' means a claim by a person that he sustained injustice or undue hardship in consequence of mal-administration.]

Related AI tags, queries and research notes

Translation